

Athens, 09-04-2025

No. Protocol: 1246

DECISION 10/2025

(Department)

The Hellenic Authority for the Protection of Personal Data convened, at the invitation of its President, in an extraordinary session via teleconference on 19-07-2023, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzaleks, and the alternate members of the Authority, Demosthenes Bougioukas and Maria Psalla, replacing Konstantinos Lamprinoudakis and Grigoris Tsolias respectively, who, although duly summoned in writing, did not attend due to an impediment. Also present at the meeting was Nikolaos Libos, as rapporteur. Present, without voting rights, were Eleni Kapralou, legal expert, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/5213/09-08-2021 submitted to the Authority, A (hereinafter "the complainant"), who worked as a civil engineer at the anonymous company named "Port Authority X" (hereinafter "OLX SA" or "the complained party") under an indefinite-term employment contract, full-time since 04-10-2004, and who had been promoted to the position of Head of the Projects Department since 2007, complains against OLX SA for violation of the data subject's rights (right to object) and unlawful processing of his personal data. Specifically, he states that OLX SA, pursuant to the decision No. ... of its Board of Directors (BoD), communicated to him through a judicial bailiff on 05-11-2020 the written termination of the aforementioned employment contract dated 04-11-2020, without compensation. This decision stated, among other things, verbatim: "As you are aware, you have been employed by the Organization as an employee since 4-10-2004 until today. Already, in execution of the decision No. ... of the Board of Directors of the Organization, we terminate without compensation our employment contract and invite you to cease providing your services as of today, due to the initiation of criminal prosecution against you in accordance with the provisions of Article 5 paragraph 1 of Law 2112/1920."

According to the complainant, the aforementioned decision of the BoD of the complained Organization was based, among other things, on: a) the No. ... copy of the general use criminal record of the complainant, which, according to his claims, was requested and obtained by OLX SA from the Criminal Records Department of the Prosecutor's Office of First Instance Y (referring to the decision No. ... of the Five-Member Court of Appeal Z against the complainant, by which he was irrevocably convicted for repeated intervention and processing of a data file, obtaining financial benefit for himself by making it accessible to third parties for a fee, and indeed to the degree of a felony that had, however, occurred prior to his hiring at OLX SA—with a sentence of three years imprisonment with a three-year suspension), b) the No. ... decision of the Misdemeanor Court Y concerning the first-instance conviction of the complainant for fraud and forgery (related to the aforementioned English degree) and the falsification of a document from ASEP, which had occurred during his employment at OLX SA (the complainant was acquitted in the second instance by the decision No. ... of the Three-Member Court of Appeal Z) and c) the No. ... opinion of the law firm Chiotelis and associates, with which OLX SA collaborates.

1 The criminal prosecution concerned the submission by the complainant of a forged English language degree before ASEP (and in his personnel file) for his hiring at OLX SA, as well as the falsification of a document that ASEP had mailed to OLX SA, with which ASEP confirmed that this forged degree indeed existed in the complainant's file (specifically, the ASEP document was replaced with another, which falsely stated that there was no such degree in the complainant's file).

2 The complainant was acquitted in the second instance by the decision No. ... of the Three-Member Court of Appeal Z, which, however, states that the offense of forgery was indeed committed by the complainant, but in 2003 and not in 2013 as alleged.

The complainant requested and received copies of the two aforementioned documents under a) and c). He complains that these documents contain a complete, clear, and definite reference regarding his irrevocable conviction by the decision of the Five-Member Court of Appeal of X and definitively by the decision of the Misdemeanor Court of Y. Specifically, as he states, the numbers and years of the two decisions are mentioned, the penalties imposed are detailed, and there is an analytical reference to the offenses for which he was convicted. Furthermore, the complainant complains that in the aforementioned document under c), there is a detailed account of the factual circumstances and judicial actions related to his second definitive conviction, for which, however, he has since been acquitted by an irrevocable judicial decision of the Three-Member Court of Appeal of X, emphasizing that when the opinion was issued, his appeal had not yet been adjudicated and the first-instance penalty was still in effect. He also accuses the accused of requesting and receiving from the criminal records department of the Prosecutor's Office of First Instance Y a copy of his criminal record, the contents of which were made known to the law firm Chiotelis and Associates, as well as to all members of its Board of Directors, to employees who attended the Board meeting without voting rights, and to all the staff of the accused. Additionally, he complains that in the context of their legal dispute, the accused submitted the sworn statement No. ... from B, an employee of the Administrative, Financial, and Procurement Directorate, in which it appears, according to the allegations, that this employee had unlawfully obtained knowledge regarding who requested his criminal record and when, as well as when the accused received a copy of a criminal court decision concerning him, from another case, and not related to the case with OLCH S.A. Finally, he claims that in the context of the dispute with the accused and in a hearing for precautionary measures, the accused submitted his note dated 20-05-2021, on pages 6-7 of which it appears that the administration requested and received a copy of his general use criminal record, which showed that he had been sentenced to three years of imprisonment with a three-year suspension, as well as that in the context of the same trial and from the aforementioned document it emerged that his file was reviewed by all the members of the Board of Directors of OLCH S.A., who thereby became aware of the relevant criminal decisions concerning him.

Meanwhile, the complainant, with his extrajudicial protest-declaration-notice dated 15-07-2021, which he served to OLCH S.A., exercised, as he states, the right of objection, declaring that he opposes any processing of his personal data and requesting to be informed whether the accused processed his personal data voluntarily without his consent, as well as for what purpose the said processing took place, simultaneously calling on him to sign a compliance declaration, certifying that he would not engage in future processing of his personal data (he also sent a related email on 15-07-2021).

Furthermore, according to what the complainant claims in the aforementioned extrajudicial protest dated 15-07-2021, all of the following constitute unlawful processing and unlawful disclosure to third parties, specifically, he states:

- 1) That OLCH S.A. unlawfully received from the criminal records department of the Prosecutor's Office of First Instance Y a copy of his criminal record, without his consent
- 2) That OLCH S.A. unlawfully received copies of the two criminal conviction decisions concerning him
- 3) That OLCH S.A. unlawfully made his criminal record known to the law firm Chiotelis and Associates, with the aim of providing an opinion regarding the termination of his employment contract
- 4) That OLCH S.A. unlawfully made this information known to all members of its Board of Directors, to employees who attended the Board meeting without voting rights, as well as to the employee who served as secretary in that meeting, and to the President of the Employees' Union of OLCH S.A., who attended to comment on the matter, in the Board meeting during which the decision to terminate his contract was made
- 5) That details regarding his criminal convictions have unlawfully become widely known to all staff of OLCH S.A. Specifically, he refers to the employee Ms. B, who testified under oath (see the sworn statement No. ...)

Among other things, that he knew exactly who requested his criminal record and when, as well as when the authorities of the accused received a copy of a court decision that does not concern OLCH S.A. in any way, but acts prior to his employment at OLCH S.A.

6) That the decision of the Board of Directors of OLCH S.A. regarding the termination of the employment contract was unlawfully published in the information system "DIAVGEIA"

7) That both in the copy of the criminal record and in the update-opinion of the law firm Chiotelis and Partners, which collaborates with OLCH S.A., there is a complete, clear, and specific reference that the complainant has been irrevocably convicted by the decision of the Five-Member Court of Appeal of X and definitively by the decision of the Misdemeanor Court of Th, with reference to the number and year of the aforementioned decisions, the penalties imposed for each, as well as the offenses for which he was convicted, in excess of the principle of proportionality.

8) That he opposes any processing of his personal data by OLCH S.A., and requests to be informed whether OLCH S.A. has voluntarily carried out this processing without his consent, as well as for the purpose of such processing and for OLCH S.A. to sign a compliance statement, certifying that it will not engage in future processing of his personal data, additionally claiming that such processing is contrary to Directive 2016/80, according to which the processing of personal data concerning criminal convictions and offenses or related security measures is carried out only under the control of an official authority or if the processing is permitted by Union law or the law of a member state that provides adequate safeguards for the rights and freedoms of data subjects and finally,

9) That the response of OLCH S.A. did not satisfy the right of objection provided to him by law.

Subsequently, OLCH S.A. timely responded to the above extrajudicial complaint of the complainant with its letter no. ..., claiming:

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1) That the processing of the complainant's personal data was carried out within the framework of the responsibilities of the Administration of OLCH S.A. and its legal obligations, taking the necessary measures to ensure the confidentiality and security of the processing of his data (which it enumerates subsequently, specifically mentioning that in the invitation of the President to the members of the Board of Directors for the discussion of the termination of the complainant's employment contract, no document was sent, contrary to the practice followed, according to which all documents concerning the subject under discussion are attached, all documents concerning the complainant have been classified as "confidential," stored in the Confidential Protocol, to which only the specially authorized employee of OLCH S.A. has access and are located within a Special Safe-Box).

2) That the law firm Chiotelis and Partners represented OLCH S.A. and declared a civil action both in the Three-Member Misdemeanor Court of Th and in the Court of Appeals of Misdemeanors of X and thus received copies of these decisions.

3) That in the invitation of the President to the members of the Board of Directors for the discussion of the termination of his employment contract, no document was sent, contrary to the practice followed in other matters to attach all documents concerning the subject under discussion.

4) That both documents bear before the OLCH protocol number the letter E (confidential protocol), to which only a specially authorized employee of OLCH S.A. has access and are located within a safe-box.

5) That the decision with no. ... of the Board of Directors of the company was posted in the information system DIAVGEIA (as publication is a prerequisite for its validity) with the personal details of the complainant anonymized.

6) That finally, OLCH S.A. does not engage in further processing of his personal data, except as necessary for the fulfillment of its legal obligations and for the defense of its legitimate interests.

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The Authority, in the context of examining the above complaint, sent to OLCH S.A. the document with reference number G/EXE/1162/18-05-2022 for the provision of opinions. Subsequently, OLCH S.A. responded to the aforementioned document with its letter numbered G/EIS/7725/06-06-2022, reiterating the claims developed above. It also added that the Port Authority of X S.A. originates from

the transformation of the Legal Entity of Public Law "Port Fund X" and is its universal successor (Article 21 of Law 2932/2001), with the sole shareholder being the Hellenic Republic Asset Development Fund (TAIPED), and is under the supervision of the Minister of Maritime Affairs and the Aegean. Additionally, it mentioned that with the circular dated 24-05-2013 issued by the Ministry of Administrative Reform and e-Governance regarding "Updating employee personal records," as well as with the circular dated 16-12-2013 from the same Ministry concerning "Legality check of degrees, certificates, and other elements of the employees' personal records," the Organization was called to verify all elements of the employees' personal records, appointing a Three-Member Committee headed by the Director of Human Resources. This committee found that there was a forged English degree in the complainant's records, as well as a falsified document from ASEP, and after the Administration was informed, OLCH S.A. filed a criminal complaint against unknown persons. Subsequently, criminal prosecution was initiated against the complainant, who was initially convicted to a prison sentence but was acquitted in the appeal trial. Meanwhile, OLCH S.A. submitted a request to the Criminal Records Department of the Prosecutor's Office of Y, which responded in July 2020, at which point a prior felony conviction against the complainant was confirmed. For this reason, OLCH S.A. submitted a request to the Prosecutor of Appeals X for a copy of the relevant decision.

Following the above, the Authority summoned OLCH S.A. and A respectively for a hearing via teleconference on 21-12-2022, with summons numbers G/EX/3275/13-12-2022 and G/EX/3276/13-12-2022, and after a postponement on 18-01-2023, in order to present their views on the case. During the session on 18-01-2023 of the Authority's Department, the complainant A attended via teleconference, and on behalf of the Port Authority of X S.A. were G, the CEO of OLCH S.A., D, the Data Protection Officer of the Organization, and Dimitrios Kremalis, the attorney representing the respondent. During the hearing, the parties presented their views and subsequently received a deadline to submit their statements in due time, with the complainant submitting the document numbered G/EIS/972/08-02-2023, and the respondent submitting the document numbered G/EIS/875/03-02-2023.

Specifically, the complainant in his document numbered G/EIS/972/08-02-2023 reiterated that the respondent Organization never requested a copy of his criminal record and never sought his consent for obtaining it, simultaneously arguing that information regarding the existence or non-existence of a criminal conviction should be collected directly and solely from the respective employee concerned. Furthermore, he stated, among other things, that the respondent did not follow the prescribed procedure for the protection of his personal data, resulting in them being made accessible to unauthorized persons, specifically that all seven members of the Board of Directors of OLCH S.A., the Financial Director, the employee serving as Secretary of the Board, the employee from the financial department B, the collaborating law firms Chiotelli and Kremalis, the attorney of the respondent, and the employee with duties as Data Protection Officer (who was asked for her opinion and provided the document numbered ...), learned about them, as the respondent did not take protective measures for the data and did not anonymize them, resulting in him currently being unable to find new employment.

The respondent Organization in its document numbered G/EIS/875/03-02-2023 referred to the history of the dispute with the complainant and argued that the said complaint was submitted to the Authority abusively and pretextually. It emphasized that due to what it learned from official documents, its trust in the complainant was irreparably shaken, who even held a position of responsibility (Head of the Projects Department). Additionally, OLCH S.A. claimed that it became clearly aware of the complainant's criminal convictions on 24-07-2020, following the recommendation of the Director of Administration, Finance, and Procurement, after the publication of the decision numbered ... by the Three-Member Misdemeanor Court of Th, in which reference is made in the reasoning regarding the imposition of penalties.

Irrevocable sentences depriving the freedom of the complainant, at which point a copy of the criminal record was requested from the competent prosecutorial authority. Furthermore, OLCH S.A. claims that the processing of the complainant's personal data was lawful, in accordance with Article 5(1) of the

GDPR, adhering to the principles of proportionality, necessity, and data minimization, as well as that:

1) a confidentiality protocol was maintained regarding all requests of OLCH S.A. to the authorities, in order to protect the security and confidentiality of the data,

2) the criminal record and the irrevocable conviction were received by the designated employee of OLCH S.A., Mr. B, who was a member of the Committee for the updating of employee files and were kept in a confidential protocol (see the decision of the Board of Directors of OLCH S.A. with protocol number ... regarding the establishment and appointment of members of a working group tasked with verifying the legality of degrees, certificates, and other elements of the personnel records of OLCH S.A. employees), in order to ensure that there would be no leakage of this information. Additionally, it is claimed that this specific employee was bound by a confidentiality and non-disclosure agreement dated 05-11-2020, which OLCH S.A. submits, while prior to September 2020, her relevant obligation was based on the general principles of labor law and the Civil Servants Code, as well as the General Regulation of OLCH. Finally, it is mentioned that the said employee, in her sworn statement, simply stated that the criminal record of the complainant was obtained, without reference to its content, and her actions were within the scope of her authority.

3) the criminal record and the conviction of 2016 were placed in a special safe to which only the designated employee for the confidential protocol has access

4) OLCH S.A. had a legitimate interest in obtaining knowledge of the criminal record and the irrevocable conviction, given that an irrevocable conviction for a felony constitutes a barrier to appointment, while it is provided in the relevant provisions of the Regulation that the Head of Department is prohibited from having a conviction for a felony

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5) the search for the criminal record was necessary for the exercise of OLCH S.A.'s legal rights, specifically for the decision regarding the continuation or not of the complainant's employment contract and the updating of his file information, according to the directive of the company's CEO, as stipulated in the circulars with protocol numbers DIDAD/F.34/35/oik. 14888/24-05-2013 and

DIDAD/F.34/42/oik.33906/16-12-2013 of the Ministry of Administrative Reform & e-Governance

6) the invocation of the criminal record before the Court was necessary for the defense of OLCH S.A.'s rights and to counter the claims of the complainant, and obtaining a copy of the irrevocable conviction was deemed necessary in order to ascertain whether the offense of interference with a data file by the complainant concerned a felony (for the purpose of profit) or not. Both of these documents (copy of the criminal record and irrevocable conviction of the Five-Member Court of Appeal of X) were obtained lawfully from the competent Prosecutorial Authority, specifically following requests made by OLCH S.A. to the Prosecutor's Office of Y and the Prosecutor's Office of the Court of Appeal of X, which were duly assessed and these requests were satisfied

7) the data requested by OLCH S.A. was accurate as it originated from a public authority (Prosecutor's Office)

8) no further processing of this data was carried out in a manner incompatible with the purpose for which it was obtained (purpose limitation)

9) the complainant was informed about the data retention period and had been informed based on the General Personnel Regulation and the Internal Operating Regulation of the Organization regarding the purpose for which the criminal record is collected, as well as being aware of the need to update his personnel file information, and of the obligation of confidentiality and discretion that all employees of OLCH S.A. were bound by

10) the members of the Board of Directors never received a copy of the complainant's criminal record or the conviction that concerned him, but only the recommendation of the Director of Administration, Finance, and Procurement of the Organization, who was bound by the relevant confidentiality and non-disclosure agreement.

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that had been signed. A copy of the criminal record was received only by the Chief Executive Officer of OLX S.A. (see the letter with protocol number ...)

11) the processing took place based on Article 6, paragraph e) or otherwise f) of the GDPR
12) the law firm Chiotelis and Partners was not provided with copies of either the criminal record or the conviction decision, but was requested to draft an opinion on the possibility of terminating the employment contract of the complainant, with OLX S.A. providing the minimum background of the case, while the same firm had represented OLX S.A. in the criminal trials of 2018 and 2020, thus having excellent knowledge of the dispute with the complainant, and the processing is based on the need to establish, exercise, or support legal claims. The lawyers of the law firm are bound by attorney-client privilege, as well as by a specific contract that was signed with the condition of maintaining confidentiality and the secrecy of the information they became aware of
13) finally, regarding the complainant's right to object, OLX S.A. responded to the complainant that the processing of his personal data was conducted based on the principles governing personal data and for reasons of overriding legitimate interest (Article 21, paragraph 1, subparagraph b of the GDPR), to counter the claims and assertions contained in the filed application for interim measures and the complainant's lawsuit against OLX S.A. The Authority, after examining all the elements of the file and the discussions that took place in the meeting of 18-01-2023, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights after thorough discussion

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CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, according to the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), the Authority has the competence to supervise the application of the provisions of the GDPR, this Law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57, paragraph 1, subparagraph f of the GDPR and 13, paragraph 1, subparagraph z of Law 4624/2019, it follows that the Authority has the competence to address the said complaint against OLX S.A., as it concerns the processing of the complainant's personal data, which are included in a filing system as defined in Article 4, subparagraphs 2 and 6 of the GDPR, thus for processing falling under the regulatory scope of Articles 2, paragraph 1 of the GDPR and 2 of Law 4624/2019.

2. Since according to Article 2, paragraph 1 of the GDPR "This Regulation applies to the, in whole or in part, automated processing of personal data, as well as to the non-automated processing of such data which are included or are intended to be included in a filing system."

3. Since specifically, according to Article 4, subparagraph 1 of the GDPR "personal data means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

4. Since, furthermore, according to Article 4, subparagraph 2 of the GDPR, the processing of personal data is "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration,

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the retrieval, the search for information, the use, the disclosure by transmission, the dissemination or any other form of provision, the correlation or combination, the restriction, the deletion or the destruction."

5. Whereas, in Article 4(7) of the GDPR, the data controller is defined as "the natural or legal person, the public authority, the agency or another body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

6. Whereas, according to Article 5(1) of the GDPR "Personal data shall be: a) processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness and transparency'); b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes shall not be considered incompatible with the initial purposes according to Article 89(1) ('purpose limitation'); c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization'); d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, with respect to the purposes for which they are processed, are erased or rectified without delay ('accuracy'); e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods, provided that the personal data will be processed solely for archiving purposes in the public interest, for scientific or historical research purposes or for statistical purposes, in accordance with Article 89(1) and provided that appropriate technical and organizational measures are applied as required by this regulation to safeguard the rights and freedoms of the data subject ('storage limitation'); f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

7. Whereas additionally, according to Article 6(1) of the GDPR "Processing shall be lawful only if and to the extent that at least one of the following applies: (...) c) processing is necessary for compliance with a legal obligation to which the data controller is subject (...) e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller; f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child. The provision f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks." Therefore, processing carried out by public authorities cannot have as its legal basis the satisfaction of their legitimate interests as data controllers.

8. Whereas according to Article 21 of the GDPR "1. The data subject shall have the right to object, at any time and on grounds relating to his or her particular situation, to processing of personal data concerning him or her which is based on Article 6(1)(e) or (f), including profiling based on those provisions. The data controller shall no longer process the personal data unless the data controller demonstrates compelling legitimate grounds for the processing which override the interests, rights and freedoms of the data subject, or for the establishment, exercise or defense of legal claims."

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of the rights and freedoms of the data subject or for the establishment, exercise, or defense of legal claims."

9. Whereas, according to Recital (47) of the GDPR, "The legitimate interests of the data controller, including those of a controller to whom personal data may be disclosed or third parties, may provide the legal basis for processing, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject, taking into account the reasonable expectations of data subjects based on their relationship with the controller. Such legitimate interest could, for example, exist when there is a relevant and appropriate relationship between the data subject and the controller, such as when the data subject is a customer of the controller or is in the service of the controller. In any case, the existence of a legitimate interest would require careful assessment, inter alia, as to whether the data subject, at the time and in the context of the collection of personal data, can reasonably expect that processing for that purpose may take place. In particular, the interests and fundamental rights of the data subject could override the interests of the controller when personal data are processed in situations where the data subject does not reasonably expect further processing of their data. Given that it is for the legislator to provide by law the legal basis for the processing of

personal data by public authorities, such legal basis should not apply to processing by public authorities in the performance of their tasks. Processing of personal data, to the extent that it is strictly necessary for the purposes of preventing fraud, also constitutes a legitimate interest of the relevant controller. Processing of personal data for the purposes of direct marketing may be considered to be carried out for the sake of legitimate interest.”

10. Whereas, according to Recital (69) of the GDPR, “When personal data can be lawfully processed because the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller or for legitimate interests of the controller or a third party, each data subject should nevertheless have the right to object to the processing of any personal data concerning them on grounds relating to their particular situation. It should be for the controller to demonstrate that their compelling legitimate interests override the interests or the fundamental rights and freedoms of the data subject.”

11. Whereas further, according to Article 5 of Law 4624/2019, “Public authorities are permitted to process personal data when the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.” However, the Authority, in its Opinion 1/2020, noted regarding this provision, among other things, that: “[...] Article 5 of the law reiterates the legal basis of Article 6(1)(e) of the GDPR, does not introduce a new or supplementary legal basis into national law, nor does it exclude the application of the legal bases of Article 6(1) of the GDPR. Interpreted in this sense, the provision of Article 5 of Law 4624/2019 does not conflict with the GDPR, but violates the rule of Union law, according to which repetition of GDPR provisions in national legislation is not permitted.” Consequently, processing, when carried out by public authorities, is lawful when it is necessary for the fulfillment of a legal obligation, in accordance with the aforementioned Article 6(c) of the GDPR.

3 See also EDPB Opinion 6/2014 regarding the concept of the legitimate interests of the controller, according to Article 7 of Directive 95/46/EC and EDPB Guidelines 1/2024 on processing of personal data based on Article 6 (1) (f) GDPR (p. 28 et seq.).

4 See also K. N. Christodoulou “Data Protection Law,” 2nd edition, Legal Library, 2020, p. 129 et seq. 17

12. Furthermore, according to Article 76, paragraph 3 of Law 4727/2020, “The following are posted on the internet: ... (id) summaries of acts of appointment, transfer, availability, acceptance of resignation, termination of employment, or demotion of employees, both permanent and temporary, and of senior officials of the Public Sector, of public law legal entities, of entities of the broader public sector, of entities of local government organizations of the first and second degree, as well as corresponding acts concerning public officials, the publication of which is required by applicable legislation, and summaries of acts of appointment and contracts of private law employment or project contracts in the Public Sector, public law legal entities, entities of the broader public sector, and entities of local government organizations of the first and second degree.” Furthermore, according to Article 79 of the aforementioned Law, “1. The posting of the acts referred to in Article 76 on the Internet and the organization of information searches is carried out subject to national and EU rules for the protection of individuals from the processing of personal data. Acts that include special categories of personal data and personal data concerning criminal convictions and offenses, as defined in applicable legislation, are not posted. 2. The posting on the Internet of the acts referred to in Article 76 and the organization of information searches is carried out subject to state secrets as provided by applicable legislation, the rules of intellectual and industrial property, as well as corporate or other confidentiality provided by more specific provisions.” Additionally, the posting on the internet, specifically on the DIAVGEIA website, serves to promote transparency in the public and broader sector and is not, in principle, prohibited by data protection legislation, provided that the acts in question do not include special categories of data. The purpose of the posting is to enhance the transparency of state action and its control by the citizen, through the extensive publicity of administrative acts (see also Article 75 of Law 4727/2020).

13. Furthermore, in Law 2112/1920 and in Article 5, paragraph 1 thereof, it is stipulated that: “The

employer may terminate the contract without observing any notice period, if a complaint has been filed against the employee for a criminal act committed in the course of his service or if a charge has been brought against him for an offense in general, which has at least the character of a misdemeanor."

14. In this case, the data and information concerning the complainant that were processed by the accused Organization, as the data controller, constitute personal data of the complainant, as they relate to an identified or identifiable natural person (the complainant), whose identity can be verified directly or indirectly through reference to an identifying element of identity, specifically it concerns the copy of his criminal record and the criminal decisions numbered ... of the Three-Member Misdemeanor Court of ..., ... of the Three-Member Court of Appeals of ..., and ... of the Five-Member Court of Appeals of ..., both in their original form as a copy and as information.

15. Regarding the aforementioned personal data of the complainant, the following forms of processing took place: verification of the complainant's documents concerning his employment at OLCH S.A., information requests to the competent prosecutorial authority for the issuance of a copy of his criminal record and the criminal decisions concerning him, access to these documents, reading and drawing conclusions, sharing by transmitting part of this information to the CEO of the company, the Board of Directors of the company, the employees who attended without voting rights, the employee who acted as secretary, the law firm Chiotelis and associates, sharing through submission in a precautionary measures trial and invocation of the sworn statement numbered ... of employee B, which referred to personal data of the complainant, as well as through the public posting of the termination of the employment contract in the DIAVGEIA information system. The ...

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OLCH S.A. has the status of data controller under Article 4, paragraph 7 of the GDPR concerning the personal data of its employees, which included the complainant.

16. Since the complainant's claim that OLCH S.A.'s response did not satisfy the right to object exercised on 15-07-2020 with his aforementioned extrajudicial statement, in which he declared his opposition to any processing of his personal data, and requested to be informed whether the respondent processed his personal data voluntarily without his consent, as well as for what purpose such processing took place, simultaneously calling for him to sign a compliance statement, certifying that he would not engage in future processing of his personal data, is to be rejected, as OLCH S.A. timely responded on 04-08-2021 to the objection exercised by the complainant on 15-07-2021. In this response, it mentioned all the security measures taken during the processing of the complainant's personal data, as well as that it does not engage in further processing of his personal data except where necessary for the fulfillment of its legal obligations and for the defense of its legitimate interests within the context of their dispute.

Furthermore, the aforementioned processing acts are carried out within the framework of the Organization's duties as a public entity (N.P.D.D.), pursuant to Circulars with protocol numbers DIDAD/Φ.34/35/οικ.14888/24-05-2013 and DIDAD/Φ.34/42/οικ.33906/16-12-2013, and are mandated by the principle of legality, according to which the Administration must revoke any illegal act, thereby restoring the legal order. Moreover, from all the submitted evidentiary documents and the claims of both parties, the following emerged:

1. OLCH S.A. did not unlawfully obtain a copy of the complainant's criminal record, but after submitting a relevant request before the Prosecutor's Office of X (Criminal Record Department), the content of which was assessed by the competent prosecutorial authority (see also the decision of the Single-Member Court of Appeal of X-special procedure for labor disputes, with number ...), which states that OLCH S.A. "(...) requested on 17-07-2020 from the competent Authority a copy of the plaintiff's criminal record, which was communicated to it by virtue of document number ...", resulting in the Authority being incompetent regarding this matter. Furthermore, in a similar manner, the Administration of OLCH S.A. lawfully obtained a copy of decision number 48/2016 from the Five-Member Court of Appeal of X (see also the submitted decisions with number ... from the Single-Member Court of First Instance of Θ, which explicitly states that "it requested and received a copy of the criminal record, (...) as well as received a copy of decision number ... from the

Five-Member Court of Appeals for Felonies of X”, and ... from the Single-Member Court of Appeal of X, which states that “The defendant had a legitimate interest in the criminal status of the plaintiff, given that the criminal conviction, especially for a felony, constituted an obstacle to appointment, according to Article 6 of the General Personnel Regulation”) (Government Gazette T. PRA.DI.T. No. 117/27-07-2020).

2. OLCH S.A. submitted in a precautionary measures trial the sworn statement of employee B with number ..., who testified under oath about factual incidents of which she had knowledge during the performance of her duties. Specifically, regarding the first issue of whether this employee lawfully obtained knowledge of this information, it should be noted that she lawfully obtained knowledge of the complainant's personal data under the direction of the Administration of OLCH S.A. for the purpose of fulfilling OLCH S.A.'s obligations regarding the verification of its employees' documents, pursuant to the aforementioned Circulars. Furthermore, regarding the second issue of whether this employee lawfully testified under oath in the context of a civil trial about what she learned during the performance of her duties as a witness in her sworn statement, this has already been assessed by a Competent Court, which evaluated this evidentiary means and freely assessed its legality as well as the validity of its content, without the Authority being competent to judge its legality in this case, according to Article 55, paragraph 3 of the GDPR, which states that “Supervisory authorities are not competent to oversee processing operations carried out by courts in the exercise of their judicial authority.”

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3. Furthermore, OLCH S.A. unlawfully disclosed the criminal record of the complainant to the law firm Chiotelis and Partners, as this firm was collaborating with OLCH S.A. (see submitted private agreements for the provision of legal services), and the lawyers of this firm had represented the accused Organization in trials, defending its legal interests against the complainant. They are also bound by the Code of Lawyers to maintain confidentiality, both towards their client and regarding any personal data of third parties that came to their knowledge, with the possibility of disciplinary sanctions in case of violation of this duty. Regarding the issuance of the opinion dated 23-10-2020 on the question posed by OLCH S.A. concerning the possibility of terminating the complainant's employment contract, it emerges from all submitted documents and the claims of both parties that the signing lawyer, Panagiotis Chiotelis, was aware of the complaint filed by OLCH S.A. on 25-07-2014, the indictment drawn up on it, and the criminal record of the complainant. He mentions in his opinion the acts for which criminal prosecution was initiated, the penalty imposed on the complainant, the offense for which he was definitively convicted, as well as the penalty imposed on him, rejecting as unfounded the claim of the accused Organization that no copies of either the criminal record or the conviction decision were provided to the law firm Chiotelis and Partners, but rather a request was made for the drafting of an opinion regarding the possibility of terminating the complainant's employment contract, with OLCH S.A. providing the minimum background of the case. If such a claim were true, the signing lawyer would have mentioned it in the relevant opinion. However, the signing lawyer refers (by way of example) on the first page of the opinion to the complaint "with...", and recounts and cites the relevant indictment ("was charged based on the indictment"). Nevertheless, this form of processing was lawful, as it aimed to fulfill the legal duties and protect the legal interests of OLCH S.A., within the framework of the need to establish and support its legal claims, a purpose that could not be achieved by other milder means.

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Specifically, this opinion was requested and drafted in the context of exercising the lawful right of OLCH S.A. (Law 2112/1920, Article 5, paragraph 1: "The employer may terminate the contract without observing any notice period if a complaint has been filed against the employee for a criminal act committed in the course of his service or if he has been charged with an offense in general, which is at least a misdemeanor"). Moreover, as can be seen from the annex to the employment contract – confidentiality clause – the complainant had already been informed as of 19-10-2020 that OLCH S.A. would not transmit or disclose personal data to third parties, unless it concerned: a) natural or legal persons to whom it has entrusted, partially or entirely, the processing of personal data, in accordance

with applicable legislation, b) transmission required for the execution of the contract, and c) transmission required for compliance with a legal obligation of the Company.

4. Furthermore, regarding the disclosure to all members of its Board of Directors, to employees who attended without voting rights at the Board Meeting of OLCH S.A., as well as to the employee who acted as secretary at this meeting, it is established that this took place lawfully, in support of the legal claims of OLCH S.A. against the complainant, within the framework of exercising the lawful rights of the employer (Law 2112/1920, Article 5, paragraph 1). Regarding the President of the Employees' Union of OLCH S.A., who attended to comment on the matter at the Board Meeting during which the decision to terminate the complainant's contract was made, she was informed about these issues by the complainant himself (see the minutes of the 40th Board Meeting of OLCH S.A., in which she states that she was informed by her colleague) and essentially attended to support the view regarding potential liabilities of the Board in the event that an employee is dismissed and subsequently acquitted.

5. Additionally, the claim of the complainant that the opinion of the law firm Chiotelis and Partners, which collaborates with OLCH, contains more personal data than required, exceeding the principle of proportionality, is also rejected. This is because the personal data that were processed and referred to in this opinion were

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suitable, relevant, and limited to what was absolutely necessary for achieving the intended purpose, which was to provide a thorough legal opinion on whether there were grounds for the termination of the employment contract due to a strong breach of trust in the employee (supporting the legal claims of OLCH S.A.), while adhering to the principle of data minimization, and this purpose could not be achieved - as previously mentioned - by other milder means.

6. Finally, the complainant's assertion regarding the public posting of the decision of the Board of Directors of OLCH S.A. concerning the termination of his employment contract, that it was unlawfully published in the information system "DIAVGEIA," is similarly rejected. Specifically, apart from being a relevant obligation of the Administration (Article 76 paragraph 3 of Law 4727/2020 and Article 6 paragraph 1 subparagraph c of the GDPR), the relevant document that was posted only contains data that is absolutely necessary for the intended purpose of transparency and control of state action, as well as for determining the content of the act, in compliance with the processing principles of Article 5 paragraph 1 of the GDPR, particularly the principle of minimization, without the posted act revealing the reason for the complainant's dismissal or disclosing data of special categories concerning him.

17. Because after all the above, OLCH S.A., as the employer company, proceeded with the lawful processing of the complainant's personal data, and had a lawful claim for the dismissal of the complainant without compensation under Article 5 paragraph 3 of Law 3198/1955, given that criminal charges had been brought against him for offenses in general—even outside of service with at least a misdemeanor character—for the protection of its legal claims and fulfillment of its legal obligations and interests, within the framework of the dispute between them, against which the complainant's right to oppose the processing of his personal data and to protection against such processing does not prevail, according to what is stated in Consideration 16 of this document, taking into account the reasonable expectations of him as the data subject based on his employment relationship with the data controller, but also considering that at the given time, the complainant's continued presence in his position as Head of the Projects Department of OLCH S.A. did not meet the conditions of Law 2112/1920 (Article 5 paragraph 1 thereof, which states: "The employer may terminate the contract without observing any notice period, if a complaint has been filed against the employee for a criminal act committed in the exercise of his duties or if a charge has been brought against him for an offense in general, having at least a misdemeanor character"), he could reasonably expect that the complained processing of his personal data could take place.

FOR THESE REASONS

The Authority,

Rejects as unfounded the complaint No. G/EIS/5213/09-08-2021 of A against the Port Authority of X S.A. (OLCH S.A.).

The President

The Secretary
Georgios Batzalexis
Irina Papageorgopoulou